



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

February 23, 2023

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 15836
(FOURTH REVISION)

EXPIRATION DATE:2027-01-31

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Galyean LP
Henderson, TX
2. PURPOSE AND LIMITATIONS:
 - a. This special permit authorizes the manufacture, mark, sale and use of non-DOT specification IBCs conforming with all regulations applicable to a UN Standard 31A intermediate bulk container (IBC) for the transportation in commerce of the materials authorized by this special permit. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
 - c. In accordance with 49 CFR 107.107(a) party status may not be granted to a manufacturing permit. These packaging may be used in accordance with 49 CFR 173.22a.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171- 180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.202, 173.203, 173.241, 173.242 and 173.243 in that a non-DOT specification IBC is not authorized, except as provided herein.

Tracking Number: 2023024005

5. BASIS: This special permit is based on the application of Galyean LP dated January 31, 2023, submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Corrosive liquids (Class 8 liquids which are corrosive to skin only and which are compatible with the tank and its appurtenances)	8	Various	II or III, as appropriate
Flammable liquids, corrosive, n.o.s.	3, 8	UN2924	II or III
Flammable liquids (Class 3 materials having a vapor pressure less than 16 psia at 130°F)	3	Various	II or III, as appropriate
Hexanes	3	UN1208	II
Hydrochloric acid	8	UN1789	II
Isopropanol or Isopropyl alcohol	3	UN1219	II

7. SAFETY CONTROL MEASURES:

a. PACKAGING: Prescribed packaging is a group of 60 gallon (230 liter) capacity non-DOT specification IBCs manifolded together within a frame and equipped with top and bottom openings, designed and constructed in conformance with Galyean LP drawings submitted to the Office of Hazardous Materials Safety Approvals and Permits Division (OHMSAPD). Each container is sixty (60) gallons or less in capacity and must be equipped with a 2" Clay and Bailey Mfg. Co. Model #937 Pressure Actuated vent or equivalent. In addition, each container must be in compliance with the following:

(1) The individual unites comprising the manifolded packaging must in all respects conform with the requirements for a UN31A steel IBC, except as follows:

(i) The minimum 450 liter (119 gallon) capacity for a bulk packaging does not apply, and instead the capacity may not exceed 230 liters (60 gallons);

(ii) The requirements of § 178.704(b) and (e) relating to protection of service equipment (including bottom discharge valves) do not apply, provided that adequate protection of service equipment and bottom discharge valves is afforded when the IBCs are manifolded within the frame;

(iii) IBCs need not be designed for top or bottom lifting as otherwise required by § 178.704(f), and are not subject to top or bottom lift design qualification tests;

(iv) In performing the IBC design qualification drop test prescribed in § 178.810, bottom discharge valves may be removed and the opening(s) plugged;

(v) IBCs need not be marked with the specification markings as otherwise required by § 178.503; and

(vi) IBCs may be fitted with sight glasses or intrinsically safe electronic level gauges. Each sight glass must have top and bottom shut-off valves, and, when the IBC is in the manifolded packaging, afforded adequate protection against accidental breakage. When performing IBC qualification tests, sight glass valves may be closed, and breakage of a sight glass without leakage is not considered a failure of the test.

(2) In addition to the design qualification tests required for IBCs under 7.a.(1) above, a manifolded packaging must be subjected to a drop flat on a side, flat on top, or on a corner, whichever is considered the most vulnerable part, without leakage.

IBCs used in performing the design qualification tests required under paragraph 7.a.(1) may be used in this test. Valves on sight glasses may be closed in performing this test.

b. TESTING:

(1) Testing on newly constructed containers will be performed after the installation of the compression fitting and coupler used to affix the intrinsically safe electronic level gauge to the tank.

(2) Containers that will be retrofitted with the electronic level gauge must be subjected to the leakproofness test described in § 178.813 after installation of the compression fitting and the coupler used to affix the intrinsically safe electronic gauge to the tank.

(3) Each IBC must be visually inspected prior to each trip to insure that it has not been damaged on the previous trip.

(4) Each non-DOT specification IBC must be reinspected and retested every two and one-half years in accordance with § 180.352(b) as prescribed for UN31A IBCs except that hydrostatic testing at a minimum pressure of 10 psig must be conducted instead of leakproofness testing.

c. OPERATIONAL CONTROLS:

(1) Each non-DOT specification IBC must be filled so as not to be liquid full at less than or equal to 130°F.

(2) Sight glass shut-off valves must be closed and secured during transportation.

(3) Non-DOT specification IBCs are only authorized when manifolded together within a frame. The number of non-DOT specification IBCs within a frame may not exceed six.

(4) Each filling overflow opening on the top of the container must connect to a 2" overflow line equipped with a shut-off valve, which must be closed and secured during transportation.

8. SPECIAL PROVISIONS:

a. In accordance with the provisions of Paragraph (b) of § 173.22a, persons may use the packaging authorized by this special permit for the transportation of the hazardous materials specified in paragraph 6, only in conformance with the terms of this special permit.

b. A person who is not a holder of this special permit, but receives a packaging covered by this special permit, may reoffer it for transportation provided no modification or change is made to the packaging and it is offered for transportation in conformance with this special permit and the HMR.

c. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

d. Each packaging manufactured under the authority of this special permit must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated by the Office of Hazardous Materials Special Permits and Approvals for a specific manufacturing facility.

- e. A current copy of this special permit must be maintained at each facility where the packaging is manufactured under this special permit. It must be made available to a DOT representative upon request.
 - f. MARKING: Each IBC must be visibly marked on one side near the middle in letters and numbers at least one inch in height on a contrasting background, "DOT-SP 15836".
 - g. Marking and placarding requirements specified for cargo tanks in 49 CFR Part 172, Subparts D and F must be met.
 - h. The design qualification tests on this design, as required by 7.a.(1) and (2) above, will serve to qualify smaller tanks made of the same material and thickness, by the same technique(s), and with identical supports and equivalent closures and other appurtenances. A drawing showing the arrangement of the smaller tanks must be on file with OHMSAPD prior to the first shipment.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor Vehicle.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act:

A Legacy for Users (SAFETEA-LU)—“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: TG